

Naresh Kumar Madan v. State of Madhya Pradesh

Supreme Court of India · Two-Judge Bench · 10 April 2007 · AIR 2008 SC 385 · Criminal Appeal No. 519 of 2007 (arising out of SLP (Crl.) No. 4529 of 2006) · **Appeal dismissed; prosecution under the Prevention of Corruption Act, 1988 upheld**

HEADNOTE

Not a Supply Code case — a criminal appeal against prosecution of a Madhya Pradesh Electricity Board civil engineer under the Prevention of Corruption Act, 1988 for allegedly taking illegal gratification for grant of an electrical connection. The Supreme Court held that an employee of a State Electricity Board constituted under the Electricity (Supply) Act, 1948 is a 'public servant' for the purposes of the Prevention of Corruption Act, 1988 independently of s.81 of the 1948 Act's deeming provision (which operates only for Indian Penal Code purposes), because the Board is a statutory corporation and its employees fall within s.2(1)(c)(iii) of the 1988 Act; a term defined in one statute cannot be interpreted solely by reference to its definition in another. Recorded here as electricity-administration-adjacent but outside the Supply Code's consumer billing/assessment/disconnection framework.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::electricity-board-employee-public-servant-status

An Electricity Board employee is a 'public servant' under the Prevention of Corruption Act, 1988 independently of the 1948 Act's IPC-specific deeming provision, since the Board is a statutory corporation within s.2(1)(c)(iii) of the 1988 Act

HOLDING

A term defined in one statute cannot be construed solely by reference to its definition in a different statute; s.81 of the Electricity (Supply) Act, 1948 deems Board employees 'public servants' only for purposes of s.21 IPC, but that does not exhaust the question of their status under the differently-and-more-broadly-worded 'public servant' definition in s.2(1)(c) of the Prevention of Corruption Act, 1988, which independently captures any person in the service or pay of a corporation established by or under a Central, Provincial or State Act. The appellant, a Board employee, therefore answered the description of 'public servant' under the 1988 Act, and his prosecution for taking illegal gratification in connection with grant of an electrical connection was maintainable. The single-judge decision in *Bimal Kumar Gupta v. Special Police Establishment Lokayukt* holding otherwise was overruled as not laying down the correct law.

¶ unspecified paragraphs (short judgment)

FLAG Recorded for corpus completeness; concerns the criminal-law 'public servant' status of Electricity Board employees for anti-corruption prosecution, not the Supply Code's consumer-facing billing/assessment/disconnection framework.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Bimal Kumar Gupta v. Special Police Establishment Lokayukt</i> 2001 (1) MPHT 330; (2001) 3 J LJ 2 [1336883] Madhya Pradesh High Court (Single Judge)	Employees of the Madhya Pradesh State Electricity Board are not 'public servants' for purposes of prosecution under the Prevention of Corruption Act, since s.81 of the 1948 Act only deems them public servants under IPC s.21, and a 'deemed provision' cannot extend to another statute (relying on <i>State of Maharashtra v. Laljit Rajashi Shah</i>).	Overruled — held not to lay down the correct law; the 1988 Act's own broader 'public servant' definition (s.2(1)(c)(iii)) independently captures Board employees regardless of the 1948 Act's IPC-specific deeming fiction.	Petitioner	Overruled
<i>Raymond Ltd. v. State of</i>	Interpretation of a term in one statute cannot be	Applied as the governing interpretive	Court	Followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Chhattisgarh & Ors.</i> (2007) 3 SCALE 341 [577956] Supreme Court	done with reference to its definition contained in another statute.	principle to reject reliance on s.81 of the 1948 Act to limit the 1988 Act's own 'public servant' definition.		
<i>State of Maharashtra v. Laljit Rajashi Shah & Ors.</i> AIR 2000 SC 937 [900221] Supreme Court	A person deemed a public servant under an analogous 'deemed to be public servant' provision for Maharashtra Cooperative Societies employees was not a public servant for purposes of the (former) Prevention of Corruption Act, 1947.	Distinguished — that case concerned a cooperative-society member, not an employee of a statutory corporation, and did not address the 1988 Act's broader definition.	Petitioner (via Bimal Kumar Gupta)	Distinguished
<i>Madhya Pradesh Electricity Board v. Union of India & Ors.</i> 2006 (9) SCALE 194 [508231] Supreme Court	The Electricity (Supply) Act, 1948 provides for the constitution and composition of State Electricity Boards, each State being enjoined to constitute one.	Cited for the general statutory background on the constitution of Electricity Boards.	Court	Followed

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.